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(12) **United States Design Patent** (10) **Patent No.:** **US D1,092,199 S**
Patel et al. (45) **Date of Patent:** **** Sep. 9, 2025**

(54) **PRODUCE CONTAINER**

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(**) Term: **15 Years**

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Related U.S. Application Data

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Aug. 12, 2021, now Pat. No. Des. 1,008,016.

(51) **LOC (15) Cl.** **09-03**

(52) **U.S. Cl.**

USPC **D9/425**; D9/435

(58) **Field of Classification Search**

USPC D9/416, 425, 428, 429, 455, 500, 435;
D7/387, 397, 399, 400, 523, 602, 608,
D7/629, 647, 667
CPC A47G 19/02; A47G 19/025; A47G 23/04;
A47G 23/06; A47G 23/0683; B65D 1/00;
B65D 1/36; B65D 81/3446; B65D 25/04;
B65D 43/162; B65D 85/34; B65D
2543/00361; B65D 2543/00537

See application file for complete search history.

(56) **References Cited**

U.S. PATENT DOCUMENTS

4,372,526 A 2/1983 Daenen et al.
D354,436 S * 1/1995 Krupa D9/425
D366,613 S * 1/1996 Fultz D7/672
D382,795 S * 8/1997 Abayhan D9/425

5,699,925 A 12/1997 Petruzzi
D407,015 S * 3/1999 Jones D9/425
D411,741 S * 6/1999 Wilson D9/425
D501,403 S * 2/2005 Wilcock D9/425
7,032,773 B2 4/2006 Dees et al.
D578,876 S 10/2008 Ambelang et al.
D628,477 S 12/2010 Shaver et al.
D628,478 S 12/2010 Snedden et al.
D628,479 S 12/2010 Snedden et al.

(Continued)

FOREIGN PATENT DOCUMENTS

EM 002225847-0003 * 4/2013
NZ 419557-0001 12/2014

OTHER PUBLICATIONS

¾ pint, Tamper-evident clamshell container, clear plastic, By Glacier Valley Online, Publication date not available, Retrieved Jul. 27, 2023 from URL: <https://www.glacierv.com/SPD/item-no-1131--3-4-pint--tamper-evident-clamshell-container--clear-plastic--qty--240--800004B0-1359413720.jsp> (Year: 2023).*

(Continued)

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(57)

CLAIM

The ornamental design for a produce container, as shown and described.

DESCRIPTION

FIG. 1 is a perspective view for a produce container;

FIG. 2 is a side view thereof;

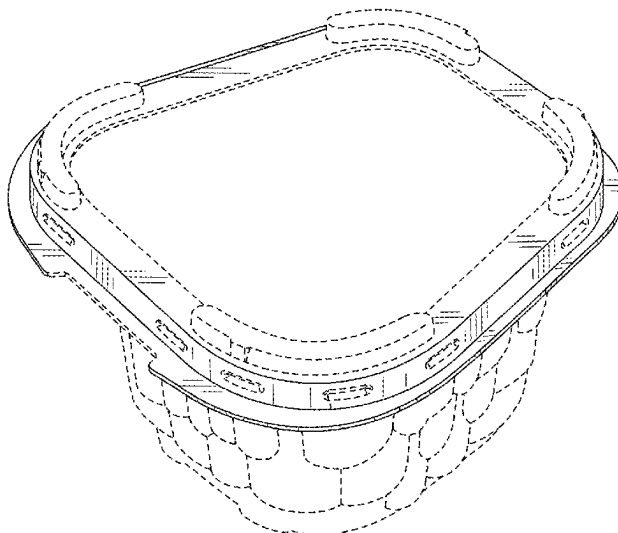
FIG. 3 is another side view thereof;

FIG. 4 is a top view thereof; and,

FIG. 5 is a bottom view thereof.

The broken lines shown in the drawings depict portions of the produce container and form no part of the claimed design.

1 Claim, 3 Drawing Sheets



(56)

References Cited

U.S. PATENT DOCUMENTS

D640,550	S	6/2011	Snedden et al.	
D672,231	S	12/2012	Snedden et al.	
D672,232	S	12/2012	Shaver et al.	
D672,612	S *	12/2012	Stamper	D7/602
D675,517	S	2/2013	Garza	
D677,996	S *	3/2013	Shirley	D7/629
D686,920	S	7/2013	Cassius et al.	
D688,126	S *	8/2013	Snedden	D9/452
D697,796	S *	1/2014	Ambelang	D9/427
D722,496	S *	2/2015	Ambelang	D9/424
D736,078	S *	8/2015	Ambelang	D9/424
D736,079	S	8/2015	Ambelang et al.	
D743,783	S	11/2015	Ambelang et al.	
D744,329	S	12/2015	Ambelang et al.	
D764,275	S	8/2016	Joergensen et al.	
D774,387	S	12/2016	Joergensen et al.	
D793,225	S	8/2017	Hu	
D807,167	S	1/2018	Joergensen et al.	
D844,429	S *	4/2019	Chapps	D9/425
D850,934	S	6/2019	Castillo et al.	
D856,799	S *	8/2019	Dominion	D9/425
D926,564	S *	8/2021	Pessagno	D9/425
D966,093	S *	10/2022	Marino	D9/425

D966,094	S	10/2022	Marino et al.	
D966,095	S	10/2022	Marino et al.	
D966,096	S	10/2022	Marino et al.	
D1,008,016	S *	12/2023	Patel	D9/425
D1,015,143	S *	2/2024	Patel	D9/425
D1,021,568	S *	4/2024	Nozawa	D7/629
D1,022,592	S	4/2024	Accursi et al.	
D1,023,742	S *	4/2024	Closas	D9/425
D1,043,261	S *	9/2024	Glupker	D7/602
D1,052,398	S *	11/2024	Tomlinson	D9/425
D1,061,239	S *	2/2025	Snedden	D9/425
2005/0266125	A1	12/2005	Robledo et al.	
2024/0140655	A1 *	5/2024	Gruen	B65D 43/0208

OTHER PUBLICATIONS

TS16 Inline Plastics 16 oz Tamper Evident Tear-Strip Container (240/Case) by Inline Plastics Online, Published N/A, Retrieved on Nov. 9, 2022 from URL:<https://shop.kevidko.com/ts16-inline-plastics-16-oz-tamper-evident-tear-strip-container-240-case/> (Year: 2022). U.S. Office Action for U.S. Appl. No. 29/854,093, dated Aug. 14, 2023, 16 pages.
Notice of Allowance for U.S. Appl. No. 29/854,093, dated Mar. 19, 2025, 7 pages.

* cited by examiner

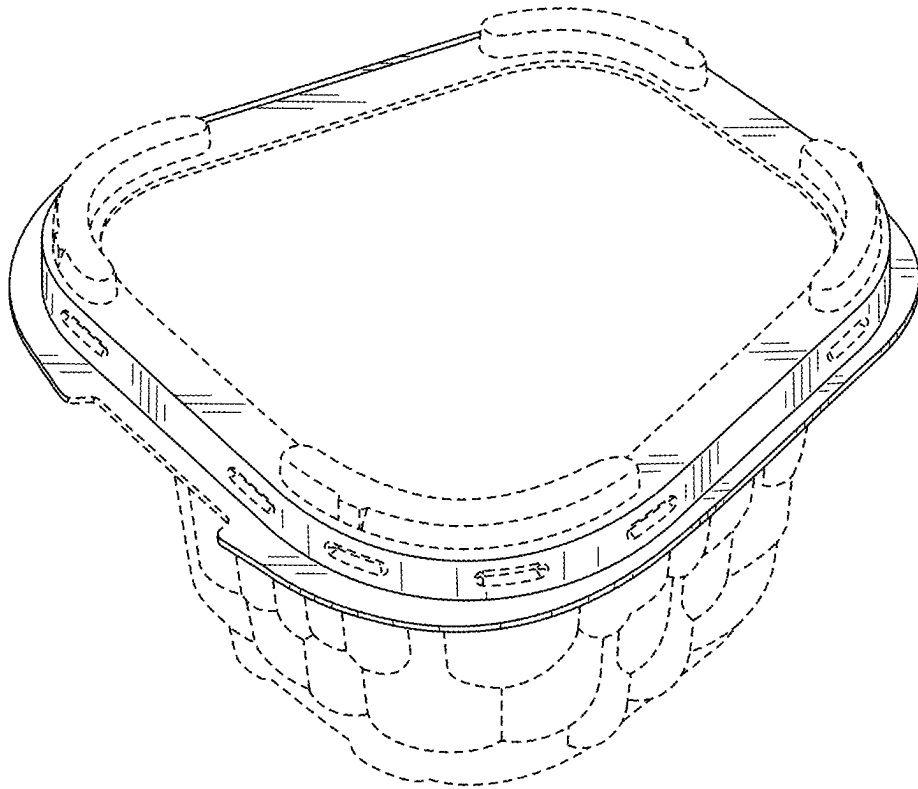


FIG. 1

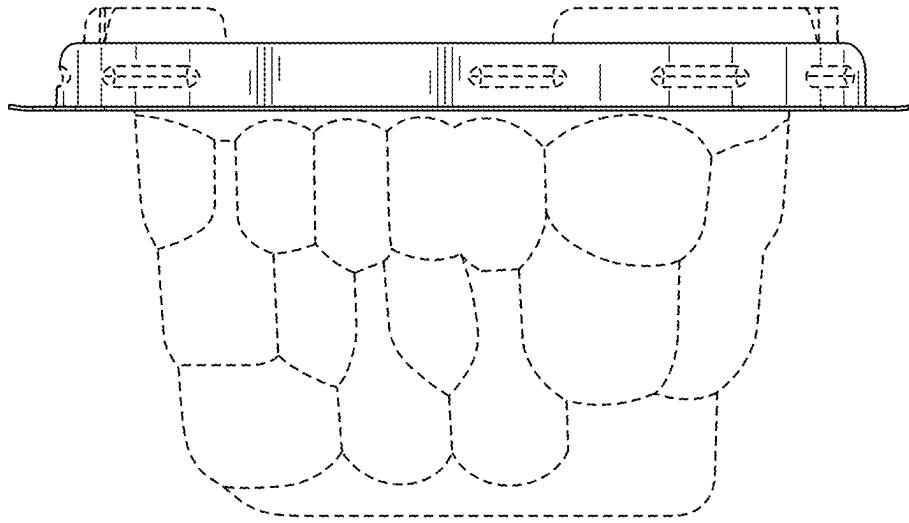


FIG. 2

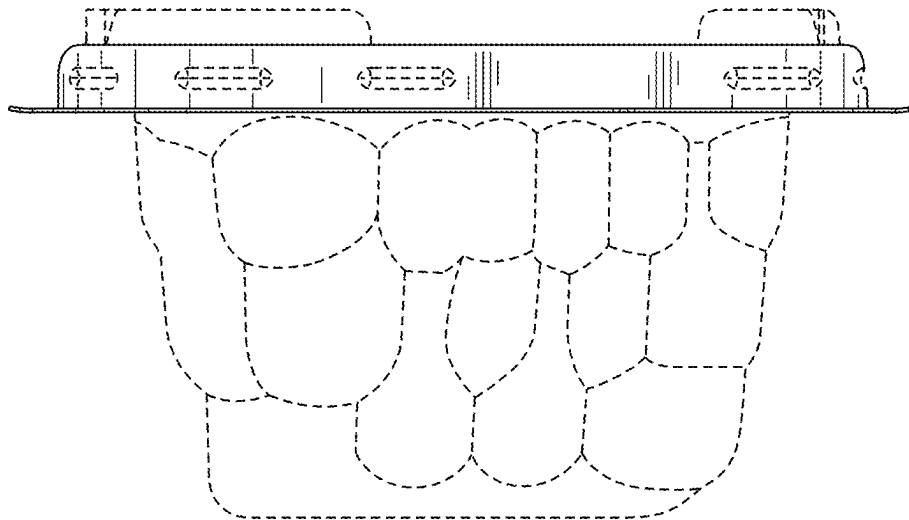


FIG. 3

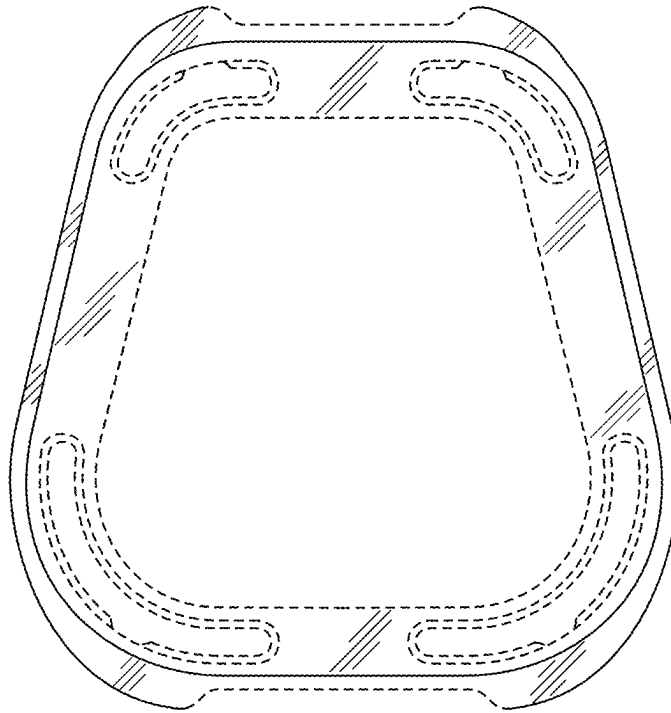


FIG. 4

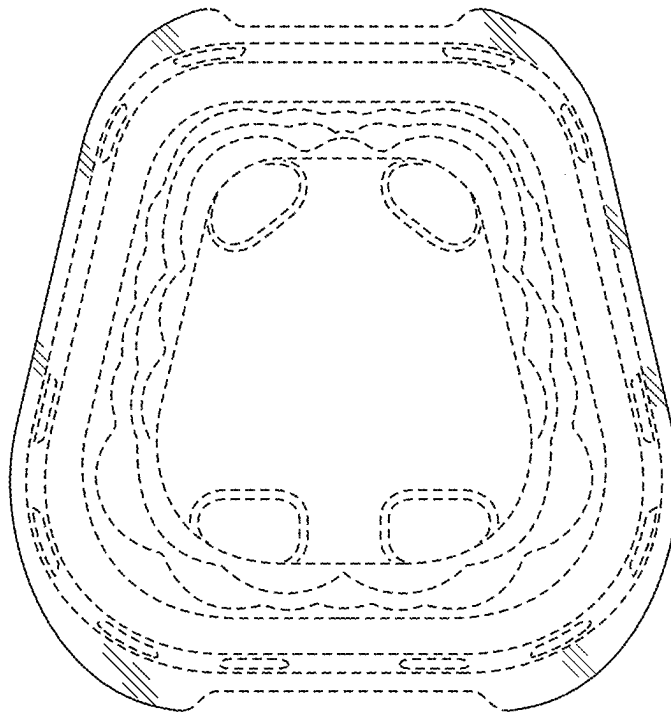


FIG. 5